

25STCV31053 25STCV31053

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-07-09
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Case Number: 25STCV31053 Hearing Date: July 9, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

DEQUIANTE BROWN,

Plaintiff,

vs.

AIDS HEALTHCARE FOUNDATION,

Defendant.

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CASE NO.: 25STCV31053

[TENTATIVE] ORDER DENYING PLAINTIFF'S MOTION
TO COMPEL DEPOSITION

Dept. 506

8:30 a.m.

July 9, 2026

On

March 15, 2026, Plaintiff noticed the deposition of Defendant's Person Most
Qualified ("PMQ") for April 2, 2026.

On

April 28, 2026, the Court denied Defendant's motion for a protective order that
would prohibit Plaintiff from setting the deposition of Defendant's PMQ without
confirming the date for the deposition beforehand.

On

June 22, 2026, Plaintiff filed this motion to compel the deposition of
Defendant's PMQ. The motion was untimely
filed and served only 12 court days before the hearing date.^[1] (See Opposition at p. 4.)

The

date for Plaintiff's most recent deposition notice passed during the pendency
of Defendant's motion for protective order.

Although that motion was ultimately denied, Plaintiff has not yet
re-noticed the deposition. Instead,

Defendant “has not produced a PMQ for deposition, has not produced PMQ testimony, and has not provided a firm date on which it will produce one or more fully prepared PMQ witnesses without court order.” (Williams Decl. ¶ 22.) The Court is guessing that Plaintiff’s counsel continues to subscribe to the common belief that depositions cannot be noticed until after a date is agreed on by the parties and that to do otherwise is to improperly “unilaterally” set the deposition.

As the Court previously informed the parties, it is not improper to unilaterally pick a date. It is Plaintiff’s obligation to first properly notice a deposition, and then she may seek a court order only if the witness does not appear for a duly noticed deposition.

The
motion is DENIED.

Moving
party to give notice.

Parties
who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 9th day of July 2026

Hon. Thomas D. Long

Judge of the Superior
Court

[1] Defendant also observes that the proof of service states that Plaintiff’s counsel signed it in Los Angeles, California, but on that date, “Plaintiff uploaded a social media post showing her in Italy, and bragging that she had 132 unread emails, 21 missed calls, and that she was doing nothing to prepare for any of her 6 upcoming hearings.” (Cowan Decl. ¶ 20 & Ex. M.)